

25STCV18828 25STCV18828

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-14

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Case Number: 25STCV18828 Hearing Date: August 14, 2026 Dept: 513

Superior

Court of California

County of

Los Angeles – Central District

Department 513

Stacey K Smith

;

Plaintiff,

vs.

Ford Motor Company

, et al.,

Defendants.

Case No.:

25STCV18828

Hearing Date:

August 14, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion
for Judgment on the Pleadings

MOVING PARTY: Defendant Ford Motor Company

RESPONDING

PARTY: Plaintiff Stacey K. Smith

Motion for Judgment on the
Pleadings

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

DISCUSSION

Defendant Ford
Motor Company ("Defendant") moves the court for an order granting judgment on
the pleadings as to the sixth cause of action for fraudulent concealment
alleged by plaintiff Stacey K. Smith ("Plaintiff") in her complaint.

The court grant's
Defendant's motion as to the sixth cause of action for fraudulent inducement – concealment
because it does not state facts sufficient to constitute a cause of action since
Plaintiff has not alleged that Defendant had a duty to disclose the facts regarding
the subject defects in the vehicle, including because Plaintiff has not alleged
facts establishing that Plaintiff purchased the vehicle directly from Defendant
or its agent and that, during the course of those direct dealings, Defendant concealed
facts regarding the defects from Plaintiff.

(Code Civ. Proc., § 438, subd. (c)(1)(B)(ii); Rattagan v. Uber Technologies,
Inc. (2024) 17 Cal.5th 1, 40-41 [circumstances imposing a duty to disclose "presuppose
a preexisting relationship between the parties" which "must necessarily arise from

direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large”]; Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844, review dismissed Dec. 18, 2024 [finding complaint sufficient and declining to hold claim barred on the ground that there was no relationship requiring Nissan to disclose known defects where plaintiffs alleged they bought the car from a Nissan dealership, that Nissan backed the car with its warranty, and Nissan’s authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers].)

The burden is on the plaintiff “to articulate how it could amend its pleading to render it sufficient.” (Palm Springs Villas II Homeowners Assn., Inc. v. Parth (2016) 248 Cal.App.4th 268, 290.)

To satisfy that burden, a plaintiff “must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.” (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The court finds that Plaintiff has not articulated the facts that she could allege to render the sixth cause of action against Ford sufficient and therefore grants the motion without leave to amend.

ORDER

The court GRANTS defendant Ford Motor Company’s motion for judgment on the pleadings as to the sixth cause of action for fraudulent concealment without leave to amend.

The court orders defendant Ford Motor Company to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 14, 2026

Robert B. Broadbelt III

Judge of the Superior Court